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Submitter Information

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General Comment

If there is no transparency in how AI is trained and used, then not only will AI development fail, but it will also be a failure to the American people. Copyright laws exist for a reason—to protect originality, creativity, and the rights of creators. While I understand that AI needs a foundation to learn from, it should still be held to the same copyright standards that apply to human creators. Without such accountability, the value of intellectual property could be diminished, making original work feel null and void.

A major concern is that AI, if not properly regulated, may contribute to the erosion of originality. As AI systems generate content based on vast datasets, there is a risk that they will not only replicate but also inadvertently exploit copyrighted material. According to Buick (2024), ensuring transparency in AI training data is crucial for upholding copyright protections and maintaining trust in creative industries. If creators' rights are not safeguarded, the incentive to innovate may decline, impacting fields such as poetry, music, and literature—areas where originality thrives.

While it is true that people sometimes feel discouraged upon realizing their ideas are not unique, this realization often pushes them to refine their creativity and find new approaches. Inspiration fuels artistic and intellectual progress, and without clear boundaries for AI use, this cycle of innovation could be disrupted. Buick (2024) emphasizes that transparency in AI training is essential to mitigating legal and ethical challenges, ensuring that AI does not undermine human creativity but rather supports it.

Transparency in AI development and usage is critical. Without it, we risk devaluing creative work and allowing AI to operate outside of the legal and ethical standards that human creators must follow. Copyright protections must extend into the digital age, ensuring that both AI and human creators are held to the same standards.

References

Buick, A. (2024). Copyright and AI training data—Transparency to the rescue? *Journal of Intellectual Property Law & Practice*.
<https://doi.org/10.1093/jiplp/jpae102>